

2:00 PM

LINE 11

24-CIV-07750 NEERKA TANDON, ET AL. VS. TIANHAO CHEN

NEERKA TANDON
TIANHAO CHEN

CHET R. BHAVSAR
DENNIS F. MORIARTY

MOTION FOR RELIEF FROM DEFAULT AND FOR LEAVE TO FILE RESPONSIVE PLEADING [CCP §473(b)]

TENTATIVE RULING:

A stipulation and [proposed] order to set aside entry of default against Defendant Tianhao Chen was submitted on 6/22/2026. The Court signed the order on 6/22/2026 and VACATES the motion hearing as it is MOOT.

2:00 PM

LINE 12

24-CLJ-06163

LAWYERS TITLE COMPANY VS. PAUL NARCISSE, ET AL.

LAWYERS TITLE COMPANY
PAUL NARCISSE

JOSETTE D JOHNSON

LAWYERS TITLE COMPANY'S MOTION FOR ORDER DISCHARGING STAKEHOLDER FROM LIABILITY; AND AWARD OF ATTORNEYS FEES AND COSTS

TENTATIVE RULING:

Plaintiff Lawyers Title Co.'s Unopposed Motion for Order Discharging Stakeholder from Liability and Award of Attorney's Fees and Costs is GRANTED.

"[W]henver conflicting claims are or may be made upon a person for or relating to personal property ... , such person may bring an action against the conflicting claimants to compel them to interplead and litigate their several claims." (Code of Civ. Proc., § 386, subd. (a).) "In an interpleader action, the court initially determines the right of the plaintiff to interplead the funds; if that right is sustained, an interlocutory decree is entered which requires the defendants to interplead and litigate their claims to the funds." (*Shopoff & Cavallo LLP v. Hyon* (2008) 167 Cal.App.4th 1489, 1513.)

Plaintiff Lawyers Title Co. ("LTC") presents evidence showing it served as escrow holder for a transaction between Defendants Paul Narcisse and Rina Narcisse (collectively, "Buyers") and Defendants David Stariha and Bernadette Romero (collectively, "Sellers"), where (1) Buyers cancelled the contract and attempted to retrieve the \$17,500.00 held by LTC and (2) Sellers objected and refused to agree to the disbursement of the funds to Buyers. (Mar. 20, 2026 Declaration of Ron Dechaine, ¶¶ 2–6.) Escrow holders in such transactions have long been held to be neutral stakeholders with a right to interplead the buying and selling parties and be dismissed. (See *Pacific Loan Mgmt. Corp. v. Superior Court* (1987) 196 Cal.App.3d 1485, 1490.)

The subject funds have already been deposited with the Court (see Oct. 4, 2024 Order, p. 3), and there is no opposition to LTC's request to be discharged or its request that the remaining parties be enjoined from instituting any other proceeding regarding the rights and obligations between themselves and between LTC (see Code Civ. Proc., § 386, subd. (f)).

LTC also requests for an award of attorney fees and costs to be paid out of the deposited funds. When ordering the discharge of the interpleading plaintiff, "the court may, in its discretion, award such party his costs and reasonable attorney fees from the amount in dispute which has been deposited with the court." (Code Civ. Proc., § 386.6, subd. (a); see, e.g., *Southern California Gas Co. v. Flannery* (2016) 5 Cal.App.5th 476, 487.)
